

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 30, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

**IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.**

THANK YOU.

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1A. **P23-00775** **MATTER OF: ANDRE FAMILY LIVING TRUST**
9:00 AM HEARING IN RE: MOTION FOR SUMMARY JUDGMENT FILED BY STANLEY GENE ANDRE ON 10/17/25

Need:

1. Appearances
2. Proposed Order

Notes:

- a. Memorandum of Points and Authorities in Opposition filed 04/08/26 by Gary Alan Andre

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1B. **P23-00775** **MATTER OF: ANDRE FAMILY LIVING TRUST**
9:00 AM HEARING IN RE: TO SET

Need appearances

Note: Notice of Motion and Motion for Summary Judgment filed by Stanley Gene Andre is set for hearing 3-19-2026.

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1C. 9:00 AM	P23-00775 MATTER OF: ANDRE FAMILY LIVING TRUST HEARING IN RE: PETITION FOR REMOVAL OF STANLEY GENE ANDRE AS TRSUTEE; FEES AND COSTS FILED BY GARY ALAN ANDRE ON 06/25/2025
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Need:

1. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice so court can confirm mailing. LR 7.112

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1D. 9:00 AM	P23-00775 MATTER OF: ANDRE FAMILY LIVING TRUST HEARING IN RE: MOTION FOR SUMMARY JUDGMENT OR IN ALTERN SUMMARY ADJUDICATION FILED BY GARY A ANDRE ON 1-9-26 Need: 1. Appearances 2. Proposed Order Notes: a. Objections to Evidence filed 04/10/26 by Stanley Gene Andre b. Opposition filed 04/10/26 by Stanley Gene Andre
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**5A. P23-02065 MATTER OF: EDWIN SR. AND GUILLERMINA SOMARRIBA FAMILY TRUST DATED
AUGUST 11, 1995**

9:00 AM HEARING IN RE: PETITION TO APPROVE CREDITOR CLAIM FILED ON 01/05/2024 BY ELIA LONSDALE

Need:

1. Appearances to report status, including mediation ordered 5-28-2024
2. Verified declaration by petitioner to include an itemized list of expenses for which she is seeking reimbursement

Notes:

- a. Objection of Edwin Somarriba, Jr. filed 5-23-2024.
- b. Reply filed 6-13-2024.

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5B.	P23-02065	MATTER OF: EDWIN SR. AND GUILLERMINA SOMARRIBA FAMILY TRUST DATED AUGUST 11, 1995
9:00 AM	HEARING IN RE: PETITION FOR APPROVAL OF FIRST, SUPPLEMENTAL AND SECOND ACCOUNTINGS FILED ON 11/27/2024 BY ELIA LONSDALE	
	Need: 1. Appearances	
	Notes: a. Response and Objection filed 04/01/25 by Edwin Somarriba Jr.	

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5C.	P23-02065	MATTER OF: EDWIN SR. AND GUILLERMINA SOMARRIBA FAMILY TRUST DATED AUGUST 11, 1995
9:00 AM	HEARING IN RE: PETITION FOR ORDER TO REMOVE AND SURCHARGE TRUSTEE AND TO COMPEL AN ACCOUNTING FILED ON 11/21/23 BY EDWIN SOMARRIBA	
Need appearances to report status, including mediation ordered 5-28-2024		
Notes: a. Objection filed by Elia Lonsdale 03-12-2024.		

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8.	P24-00535	MATTER OF: LOWELL D. SEWELL AND ELLA M. SEWELL REVOCABLE LIVING TRUST, DATED MARCH 27, 2008, AS RESTATED JULY 13, 2016
9:00 AM	HEARING IN RE: MOTION OF PETITIONER MICHAEL PATRICK SEWELL FOR ORDERS COMPELLING RESPONDENT FILED ON 12/09/2025	

Need:

1. Appearances
2. Proposed Order

Notes:

Trial dates set 08/20/26, 08/21/26, and 08/27/26 at 1:30pm

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9.	P24-00650	MATTER OF: EMILIANA L. DERBIGNY-JARAMILLO IRREVOCABLE SPECIAL NEEDS TRUST
9:00 AM	HEARING IN RE: 1ST & CURRENT ACCOUNT & REPORT OF TRUSTEE; PETITION TO SETTLE ACCOUNT; PETITION FOR CONTINUED PAYMENT OF CARE GIVER'S FEES, PETITION TO FIX & ALLOW ATTY'S FEES; PURCHASE RESIDENCE FILED BY INSPIRE TRUST CO ON 12-8-25	
	Need: Appearances	

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10.

9:00 AM

P25-00632

ESTATE OF: DOROTHY CRUSE

HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT FILED BY JOYCE K
BAILEY ON 12/09/2025

Need:

1. Amended Notice of Hearing showing proof of mailing to all heirs. On the Notice of Hearing filed 01/20/26, the server's signature is not dated.
2. Verified declaration by petitioner to specify whether all charges for legal advertising, probate referee's services and costs of administration have been paid. LR 7.317
3. Declaration to state need for reserve in excess of \$2,000.00.
4. Verified declaration by petitioner to specify plan of distribution, including approximate amount of cash to be distributed to each heir. LR 7.307(a)
5. Revised Proposed Order to include list of assets on hand available for distribution and plan of distribution including approximate amount of cash to be distributed to each heir. LR 7.307(a); 7.101

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11. **P25-01516** **ESTATE OF: JOHN HARVEY**
9:00 AM HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 08/26/25 BY
JORDEN A. HARVEY

Need:

1. Verified declaration by petitioner to complete petition item # 3.h(3) or 3.h.(4) (whether petitioner is a resident of the United States)
2. Verified declaration by petitioner to complete petition item # 3.f. (whether decedent died intestate or testate)

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12.

9:00 AM

P25-01596

ESTATE OF: ROBERT LIPTACK

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL
ANNEXED WITH IAEA FILED ON 09/08/25 BY DENNIS MCLAUGHLIN

Need:

1. Verified declaration by petitioner to complete petition item # 6
2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to Michael Campli and Sam Campli. PrC § 8110; LR 7.151(e)
3. Verified declaration by petitioner to include typed copy of will exactly as written, including line crossed out. PrC § 8002(b)(1)
4. Proof of Holographic Instrument Form DE-135. PrC § 8222

Note: This case will be consolidated with Case # P22-01907, with Case # P22-01907 as the master case number. All future documents should be filed with that case number.

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13. 9:00 AM	P25-02195 HEARING IN RE: BY THE TRUSTEE OF THE IRA FAIR FAMILY DATED JANUARY 22, 2025 FILED ON 12/09/25 BY JAMAL FAIR	MATTER OF: THE IRA FAIR FAMILY DATED JANUARY 22, 2025
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Need appearances

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14. 9:00 AM	P25-02196 HEARING IN RE: PETITION FOR COMBINING AN IRREVOCABLE AND REVOCABLE TRUST FILED ON 12/09/25 BY LEROY A. GERKE	MATTER OF: THE GERKE FAMILY TRUST DATED AUGUST 24, 2005, AS AMENDED
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Need:

1. Appearances

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15. 9:31 AM	P23-00554 *ORDER TO SHOW CAUSE	ESTATE OF: RALPH COOPER, SR.
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Need appearances by Shawn Kim, Esq.

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16. 1:30 PM	P24-01745 COURT TRIAL HEARING	GUARDIANSHIP OF: ZANE RIVERA
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Need appearances